

		<i>Medical Group, Inc.</i> (1997) 15 Cal.4th 951, 972.) As a response and opposition have not been filed, Respondent has failed to demonstrate any defense to arbitration. Petitioner's counsel is ordered to give notice.
10.	Wesco Insurance Company v. BC Home Builders 2020-01169405	Before the court is the motion for entry of judgment in accordance with written settlement agreement. The motion is GRANTED as set forth below. On November 10, 2020, plaintiff Wesco Insurance Company (Plaintiff) filed a complaint alleging breach of contract against defendant BC Home Builders, a corporation and dba Battres Construction (Defendant). On March 2, 2022, the parties entered into a written settlement agreement and notice of settlement was filed. (ROA 93) A copy of the settlement agreement is attached as Exhibit A to the motion. The settlement agreement called for a judgment to be entered in favor of Plaintiff and against Defendant, the entry of which was "stayed unless there be an event of default under this Agreement and failure to cure as hereinafter provided." (Settlement Agreement at Section 2.A.ii) Wesco states Defendant has defaulted and failed to cure despite being provided notice of the default. (Aires Decl. ¶4.) A copy of the written notice to cure, as required by section 3.A of the Settlement Agreement, is attached as Exhibit B to the motion. Code of Civil Procedure section 664.6 "was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit." (<i>Weddington Productions, Inc. v. Flick</i> (1998) 60 Cal.App.4th 793, 809.) Personal consent to the material terms of the settlement by each of the parties is a statutory prerequisite to a 664.6 motion. (<i>Critzer v. Enos</i> (2010) 187 Cal.App.4th 1242, 1257-1258.) "A court ruling on a motion under Code of Civil Procedure section 664.6 must determine whether the parties entered into a valid and binding settlement . . . A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms . . . The court ruling on the motion may consider the parties' declarations and other evidence in deciding what terms the parties agreed to, and the court's factual findings in this regard are reviewed under the substantial evidence standard . . . If the court

		determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. The statute expressly provides for the court to 'enter judgment pursuant to the terms of the settlement.'" (<i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182-1183 [internal citations omitted].) Here, Plaintiff has established there was a valid and binding settlement agreement of the case and the parties agreed to all material settlement terms. The agreement is signed by both parties and was entered into during the pendency of litigation. Plaintiff has established Defendant breached the agreement. Plaintiff states the total amount currently owed on the judgment is "the principal sum of \$120,893.89, together with prejudgment interest of \$88,337.48 (which is \$33.11 per day from December 27, 2017 through April 17, 2025 [2,668 days] using the legal rate of 10% per annum), plus the principal sum of \$21,360.29, together with prejudgment interest of \$15,438.15 (which is \$5.85 per day from January 25, 2018 through April 17, 2025 [2,639 days] using the legal rate of 10% per annum, plus costs of suit of \$535.00, and \$1,500.00 as and for the attorney's fees incurred in seeking judgment, less credits for payment(s) made of \$101,158.56, for a total judgment of \$146,906.25." (Aires Dec. ¶15) Defendant has not filed an opposition and does not dispute Plaintiff's claims. Accordingly, the Motion is GRANTED. Plaintiff is ordered to submit a proposed judgement. Plaintiff's counsel is ordered to give notice of this ruling.
11.	Claim of Garcia <i>2024-01429125</i>	Before the court is the motion for default and default judgment of forfeiture filed by petitioner People of the State of California (Petitioner). As set forth below, the motion is GRANTED. The court finds notice has been provided as required under Health and Safety Code section 11488.4. Real parties in interest Kevin Garcia and Irving Garcia were personally served with both a receipt for seizure and personal notice of intended forfeiture and the petition in the present case, including a copy of a blank "Claim Opposing Forfeiture" form with each of those notices. Petitioner also has provided evidence the notice of